

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-23

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT MARINE CO.,
LTD. ,

RESPONDENT.

JOINT MOTION FOR EXTENSION OF TIME

Complainant, Samsung Electronics America, Inc. (“SEA”), and Respondent, HMM Co., Ltd. (“HMM”) (each a “Party” and collectively the “Parties”), through their undersigned counsel, respectfully submit this Joint Motion for Extension of Time and proposed revised procedural schedule (“Motion”). HMM also moves the Court for a short suspension of the discovery schedule to attempt to resolve a claim of privilege asserted by SEA over certain documents already produced.

The Parties submit this Motion to report on their efforts to complete depositions as well as their collaborative engagement in the resolution of discovery issues and disputes.

A. Joint Motion for Amendment of Schedule

Under Your Honor’s March 13, 2026, Third Amended Scheduling Order (“March 13 Order”), depositions are scheduled to end and the parties are to submit a joint status report on May 29, 2026.¹ The Parties have been diligently preparing for and taking testimony since the March 13 Order, and as a result have been able to complete sixteen depositions of witnesses associated with SEA and HMM (Susan Dibartolomeo; Sarah Twomey; Tasha Hammond; Nathan Kim; Tina Shin; Dianne Gunn; JS Choi; Wangmin (Billy) Lee; Shin Kim; Seungho Oh; Min Kim; Sungchan (Allan) Park; Philip Goedinhaus; Brian Locasto; Steve Szabo; Michael Rapske; and Peter Kim). All of these depositions have required travel by counsel for at least one of the Parties and usually both (save the remote deposition of Mr. Geodinhaus from New Zealand).

The testimony in this case has thus far required at least six separate trips, to Dallas, Washington, D.C., and California. It is anticipated additional travel will be necessary to complete the remaining depositions. Thus far, the Parties have been able to avoid travel to Korea (as HMM produced its Korean witnesses in the U.S.), but a number of the remaining deponents are located in Korea, and others have relocated for work reasons, including one to Chile and another to Singapore, which may necessitate international travel. Or, at a minimum solving time zone differences which may stretch the depositions over two days. Both Parties are also seeking testimony from third-party witnesses and are working to schedule these depositions. In addition, a

¹ In addition to taking testimony, the Parties have also continued to exchange documents and work cooperatively to resolve discovery disputes, with the exception of those matters discussed in SEA’s Motion to Compel that is presently before Your Honor. HMM has completed 13 productions, the most recent of which was April 3, 2026. HMM’s entire production to date includes a total of 1,141,254 pages of material and 150,131 documents. To date, SEA has produced 3,230,784 pages of materials totaling 609,624 documents. Some additional document production is anticipated separate from the Motion to Compel ruling.

number of fact witnesses now either work elsewhere or have retired, making these depositions more difficult to arrange and schedule.

The Parties have also worked diligently to refine and narrow their deposition requests. For example, SEA has withdrawn four deposition notices and identified two new HMM witnesses and one third-party witness. HMM has also identified a number of additional SEA witnesses it wishes to depose, and the Parties are working to schedule. The Parties continue to discuss dropping additional witnesses or taking certain depositions entirely remotely (the deposition of Philip Goedinhaus, for example, was done completely remotely with the witness at a barrister's office in New Zealand). Currently, both SEA and HMM have each identified a further six witnesses they wish to depose (12 total), and, as noted above, both Parties may identify additional witnesses.

Despite the extensive travel and diligent efforts to complete depositions, the Parties will be unable to do so prior to the expiry of the current deadline. The Parties thus respectfully jointly seek an Order extending the discovery deadlines by 60 days from the present dates to allow the Parties to complete discovery, particularly the remaining depositions. As the Court is aware, with respect to those remaining fact witnesses that are native Korean speakers, some extra time is required to prepare for these depositions and the certified translations of Korean documents used at those depositions.

This Joint Motion is filed in compliance with 46 C.F.R. § 502.102, which allows motions for enlargement of time to “be granted upon a showing of good cause” if “received at least seven (7) days before the scheduled filing date.” The Parties respectfully submit this Motion after having met and conferred on May 8, 2026, and with numerous emails and letters in between this meet and confer, along with subsequent emails and work, as required by 46 C.F.R. § 502.71. The Parties respectfully submit that good cause exists for granting the requested enlargement of time.

B. HMM Requests a 14 Day Stay of Discovery

Three depositions of SEA witnesses were scheduled to take place this week (commencing May 12, 2026). On Friday afternoon, May 8, 2026, SEA's counsel advised HMM that approximately 158 documents had been inadvertently produced that SEA claims are privileged and provided HMM with a privilege log identifying these documents, in accordance with the parties' protective order. SEA counsel explained to HMM counsel that this discovery was produced in another matter pending before the FMC (24-16 - Samsung Electronics America, Inc. v. COSCO Shipping Lines Co.), and on April 24, 2026, counsel for COSCO in that matter inquired as to the contents of what SEA claims is a privileged document and that precipitated a review of the production and a claw back request and privilege log in the COSCO proceeding and this proceeding. SEA further explained that the predicate for the privilege claim is contained in five additional emails that were not produced to HMM and were withheld as privileged, but were identified in the privilege log sent on May 8.

The documents SEA now claims are privileged appear to be related to SEA's review of detention and demurrage charges in 2022. HMM will require time to review these documents, many of which were to or from key SEA witnesses in this matter who have not yet been deposed, including Michael Henderson, Byung Kweon Choi, and Sooyong Choi, the witnesses which were scheduled to be deposed this week on May 12, 13, and 14, 2026. In light of the uncertainty around what documents may be shown and questions asked, HMM determined it was not able to proceed with those depositions and postponed them on the evening of May 8 (after counsel for the parties held an emergency meet and confer evening call). In addition, it is not clear whether other witnesses were asked questions or shown materials related to SEA's privilege claim and the extent

to which these materials have been relied upon by HMM in crafting strategy and preparing legal advice.

HMM accordingly respectfully requests that discovery in this matter be stayed for a short period of 14 days to allow HMM to review all 158 documents, confer with SEA to see if it can be agreed that all or a sub-set are privileged materials, and to prepare a status report at the end of this period reporting on the results of this review and discussion with SEA. For its part, SEA consents to this request. In the event that the Parties cannot agree on the privilege claim, this issue may require a status conference and/or a motion.

C. Proposed Amended Scheduling Order

The Parties respectfully submit that an extension of the scheduling order is warranted in light of their diligent efforts to prepare for and complete 16 depositions to date, as well as the substantial work that remains to prepare for and take the remaining depositions in this matter. Based on the good cause shown above, the Parties respectfully request the extension and resetting of the deadlines as follows:

Event	Current Date	Proposed New Date
Fact depositions end; joint status report due	May 29, 2026	July 31, 2026
Expert reports due	June 30, 2026	August 31, 2026
Rebuttal expert reports due; expert depositions begin	July 31, 2026	September 30, 2026
Discovery closed	August 24, 2026	October 26, 2026
Meeting to discuss joint prehearing statement must be held by this date; exhibits must be exchanged by this date	September 7, 2026	November 16, 2026

Joint prehearing statement, objections to exhibits, and motions for confidential treatment are due	September 28, 2026	December 7, 2026
Prehearing conference after receiving the joint prehearing statement	TBD	TBD

The Parties welcome the opportunity to address their diligent work since the last status conference, the proposed amended schedule, and the circumstances which give rise to this application at a conference call, should the Presiding Officer have questions or otherwise believe that a conference would be useful. Based on the good cause shown above, the Parties pray for an Order extending the current discovery deadline and resetting the deadlines in this case as outlined above.

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Respectfully Submitted,

Dated: May 13, 2026

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